although Solicitor General Gopal Subramanium's refusal to appear at one of the key hearings caused some consternation.[6] As is often the case with PILs, the court chose to retain the case on its roster and schedule hearings periodically, often after long gaps of time between hearings, as opposed to hearing the case in a single unbroken stretch.

At one of the early hearings in April 2008, the court directed the NHRC to investigate and examine the allegations of the parties. The NHRC was tasked with establishing an appropriate fact-finding committee that would report back to the court under sealed cover with its findings on the atrocities committed by Salwa Judum and the Naxalites. The committee appointed by the NHRC lacked a diversity of viewpoints and consisted of IPS officers from the NHRC's investigative unit. Human rights activists criticized the composition of the committee as it did not include Adivasis from the area or representatives of NGOs as members (or, for that matter, to accompany the committee on its site visits).[7]

Further controversy developed as the deadline for the NHRC committee to submit its report drew nearer. The NHRC was slated to submit its report to the court on Tuesday, 26 August 2008. That morning, the *Economic Times*, a daily newspaper, carried an article with the headline 'NHRC Gives Thumbs Up to Salwa Judum Movement'.[8] The report claimed that the fact-finding committee had concluded that 'there was nothing to suggest' that Salwa Judum was directly involved in atrocities in Chhattisgarh, 'barring a few stray cases of violence'.[9] The article also said that the committee had found 'no evidence' that the Chhattisgarh government supported or promoted the activities of Salwa Judum. When questioned by Nandini Sundar about the source of the report, the author of the article commented that he did not receive it directly from the NHRC. This prompted Sundar to speculate that he could only have received it from the state government or central government[10] – suggesting that the report had been impermissibly leaked by the committee at least a day before it was presented to the Supreme Court, and possibly even earlier.

The NHRC committee report was staunchly criticized by Sundar and other human rights activists. The problems with the report were manifold.